Franklin Arts Law Services
Pro Bono Legal Services for the Franklin Arts Community
224 Beckett Avenue
Franklin City, Franklin 33221

MEMORANDUM

TO: Attorney
FROM: Eileen Lee, Esq., Executive Director
RE: Al Gurvin
DATE: November 9, 2026

We have agreed to offer legal advice to Al Gurvin concerning a claim he may have against the Franklin Aces professional football team. The relevant materials are attached.

Our engagement by Mr. Gurvin recognizes that, as a pro bono service, we do not have the resources to represent him in litigation. Rather, we have been retained solely to provide legal advice about his potential claim. If he decides to pursue litigation, we will help him find counsel.

Mr. Gurvin has asked for our evaluation of the likelihood of success should he litigate his copyright infringement claim against the team,

Please draft an e-mail memorandum to me providing your assessment of the likely outcome of his claim. You should fully explain your reasoning as to why he should should or should not be successful in pursuing his potential claim.

Do not separately state the facts, but include the relevant facts in support of your legal analysis. Please refer to the sample e-mail attached to this memorandum as a formatting guide for your e-mail.

SAMPLE E-MAIL MEMORANDUM

To: Ira Granger, Partner
From: XXXX
Date: October 13, 20___
Re: Samara Davis; whether she may hold River Creek Apartments liable for locking her out of her apartment and disposing of her belongings per the Texas Property Code

Good afternoon, Ms. Granger,

You have asked me to research whether our client, Samara Davis, can hold River Creek Apartments liable for locking her out of her apartment and disposing of her belongings, even though she did not abandon her apartment and paid rent in full and on time. The answer is probably yes.

In Texas, a landlord cannot intentionally prevent a tenant from entering their leased premises except by judicial process, unless the exclusion results from a) bona fide repairs, construction, or an emergency; or b) removing the contents of premises abandoned by the tenant; or c) changing the locks to the premises because the tenant is at least partially delinquent in paying rent. Tex. Prop. Code Ann. § 92.0081(b) (West 2021). It is illustrated by case law that the language of the statute here is unambiguous and must be interpreted per its plain meaning. *Charette v. Fitzgerald*, 213 S.W.3d 505 (Tex. App. 2006).

In *Charette*, the court affirmed that the Charettes' conduct in changing the locks on the Fitzgeralds' rental property when the latter had paid rent and not abandoned the property violated § 92.0081(b) of the Texas Property Code. *Id.* Although the Fitzgeralds removed most of their possessions from the premises in preparation of the lease's completion, the court found, per the statute's plain language, that the Fitzgeralds did not abandon the premises. *Id.* at 511. A few of their possessions remained on the premises, and the Fitzgeralds were not given the opportunity to return from their brief vacation and fully vacate the premises themselves by the lease's completion. *Id.* at 508. The court found that the Charettes locked the Fitzgeralds out because of their own erroneous insistence upon the Fitzgeralds' abandonment, not because of bona fide repairs, correctly assessed abandonment, or delinquency in rent under § 92.0081(b). *Id.* at 512. Thus, the court held that the Charettes were in violation of the statute. *Id.*

The facts of *Charette* are sufficiently comparable to those of Davis's situation. Like the Fitzgeralds, Davis was locked out of her apartment prior to her lease's completion on an erroneous assumption of abandonment. She also went on a brief vacation with the intent to return to her apartment prior to her lease's completion, and her possessions were unlawfully removed without her abandonment under § 92.0081(b)(2). Like the Fitzgeralds, Davis was also unlawfully locked out despite her lack of delinquency in rent under § 92.0081(b)(3). Finally, River Creek Apartments did not lock Davis out for any of the reasons outlined under § 92.0081(b)(1). Thus, it is likely that River Creek Apartments will be held liable for a violation of the statute.

Please let me know if you have any additional questions or need further information.

Sincerely,
XXXX

FRANKLIN SPORTS GAZETTE

REJOICE, FRANKLIN FOOTBALL FANS, THE ACES ARE COMING!

By Ben Jordan January 27, 2025

FRANKLIN CITY, Franklin—Franklin's long and unrequited longing for professional football is about to be satisfied. The Olympia Torches, after years of unsuccessful attempts to get support for a new stadium in Olympia, have announced that, starting in July of 2027, they will relocate to Franklin City.

ProBall Inc., the team owner, says that years of declining attendance in our neighboring state of Olympia—a result (in its view) of an aging, one could even say decrepit, stadium—have made a move imperative. Although many cities around the country sought to win the team, the owner chose Franklin City for several reasons, including the proximity of a good portion of the team's fan base (without a team of their own, many Franklin residents followed the Torches) and—probably more importantly—the financial support of the Franklin State and Franklin City governments to underwrite the construction of a new, state-of-the-art stadium.

That new stadium will be built in the existing Franklin City Sports Complex, run by the Franklin Sports Authority. The Sports Complex currently includes the Omnidome, where Franklin's pro basketball and hockey teams play, and Franklin Memorial Stadium, where the baseball Blue Sox play. The new stadium will be configured for soccer as well as football.

The team has also announced that it will change its name to the Franklin Aces. The new team logo and uniforms, yet to be created, will be announced in due course according to the team owner.

Transcript of Interview between Eileen Lee and Al Gurvin (June 29, 2026)

Lee: Mr. Gurvin, nice to meet you. How may we help you?

Gurvin: They've stolen my design for the new football team's logo, and I need a lawyer.

Lee: Perhaps we'd better start at the beginning. I've read your intake application, and I know you qualify for our pro bono services given your income level, but tell me about yourself and how all this got started, from the beginning.

Gurvin: Okay, sorry, let's see. I work as a janitor at the Franklin Omnidome, the hockey rink and basketball facility used by our pro teams. I got real excited last year when they announced that the Olympia pro football team was moving to Franklin City.

Lee: Why were you so excited? Are you a big football fan?

Gurvin: I'll say—more than a big fan. I'm nuts about football, and I've been rooting for the Torches for years and years. I watch every game on TV, and I'd give my eyeteeth to be able to afford tickets to see games in person.

Lee: What happened after you saw the news reports of the move?

Gurvin: Well, I'm an amateur artist—no real training, but I like to doodle. When they announced that the team was moving, they also announced that it was changing its name to the Franklin Aces. They also said that they didn't yet have a logo or uniform designs. I didn't give it a second thought. But several months later, I started to think about a design and then one day it hit me. I realized that a real good design for a logo would be a hand holding the four aces from a deck of cards, fanned out like you hold cards. So I sketched that design, and it looked pretty good. I showed the sketch to my boss, and he liked it too.

Lee: Who's your boss? What's his position?

Gurvin: Dick Kessler—he's the work crew supervisor at the Omnidome. Anyway, he suggested that I send it to Daniel Luce, the CEO of the Franklin Sports Authority. So I took a drawing of the logo and faxed it to Mr. Luce with a note.

Lee: When did that happen, and what did the note say? Do you have a copy?

Gurvin: It was 10 months ago. Here's a copy of the note, and my original sketch [see attached note and description].

Lee: What happened then?

Gurvin: Nothing—I never heard back from anyone. Then, about a month ago, the team made a big announcement with a press conference and everything at which they announced

the new uniforms and logo, and it was mine, exactly! Here's a copy of their logo and the press release they issued with it, which was in the local newspapers [see attached press release and logo description]. I think they stole it from me, and I should be entitled to something for it—they should pay me something like $20,000.

Lee: Have you registered the copyright in your design with the United States Copyright Office?

Gurvin: No—should I?

Lee: Well, a copyright exists from the moment a work is created, and you don't need any government action to grant it. But registration with the Copyright Office is a good idea for many reasons—for example, for our purposes, should you decide to litigate, you must have registered your claim before you can take the case to court. Even though the infringement you allege has already occurred, you can still register, but let's see what route you wish to pursue. Registration isn't expensive, and it won't hurt to wait to register for a few weeks in any event. Let me look into it. I happen to know José Alvarez, the General Counsel of ProBall Inc., the team owner—he's an old classmate and friend of mine. I'll contact him to see if we can work something out short of litigation, and get back to you.

Gurvin: Okay, great.

Lee: You should understand, Mr. Gurvin, that, while we'll be happy to evaluate your claim and help you seek a quick settlement, we're in no position to represent you if you decide to litigate it. As a pro bono service, we simply don't have the resources to undertake litigation on behalf of any client. So if litigation is ultimately the route you wish to follow, we'll try to help you find counsel, but our representation of you must end at that point.

Gurvin: Sure.

Lee: We'll draft an engagement letter for you to sign. I hope we can help you resolve this.

Copy of Fax from Al Gurvin to Daniel Luce (September 25, 2025)

Dear Mr. Luce: I'm a janitor in the Omnidome, and a big, big football fan. When I read that the Torches were moving to Franklin City, and that the team would become the Aces, I had a great idea for a logo for the team. I made a sketch, and it's attached to this note. I'd be honored if the team would consider and use my logo, and I wouldn't want anything from them if they did, except maybe some tickets to games in the new stadium. Thanks, Al Gurvin

[Actual sketch omitted]

* * *

[DESCRIPTION OF GURVIN SKETCH: Mr. Gurvin's sketch consists of an outline of a hand from the wrist up, without any other features, holding four cards fanned out, in order from left to right, the ace of diamonds, ace of clubs, ace of hearts, and ace of spades.]

Press Release Announcing New Franklin Aces Logo

[Franklin City, May 28, 2025] The Franklin Aces football team is delighted to announce its new logo and uniforms. After consideration of many designs, we believe this one will be most appealing to the fans and players. Later this year we will begin discussions with various merchandise manufacturers, and we expect that our fans will be able to purchase their Franklin Aces gear next year.

[Picture of Franklin Aces logo omitted.]

* * *

[DESCRIPTION OF NEW FRANKLIN ACES LOGO:
Although the outline of the hand is somewhat different, the Franklin Aces logo presented in the press release is otherwise identical to Mr. Gurvin's sketch.]

AFFIDAVIT OF DANIEL LUCE

STATE OF FRANKLIN)
COUNTY OF LINCOLN)

I, Daniel Luce, being duly sworn, depose and say:

1. I am Chief Executive Officer of the Franklin Sports Authority. The Authority is entirely separate from ProBall Inc., the owner of the Franklin Aces football team. The Authority and ProBall Inc. are not under common ownership or affiliated in any way.

2. On September 25, 2025, I received a two-page fax from Al Gurvin, a janitor at the Omnidome facility of the Franklin City Sports Complex. I do not have a copy of the fax, but I know when I received it because I checked the fax log in our office. Although I do not recall the specifics, I remember that the fax had a sketch attached to it, and that Mr. Gurvin wanted the sketch submitted as a possible logo for the Franklin Aces pro football team.

3. I knew that the team had retained ForwardDesigns, a commercial design firm, to design a logo and uniforms for the team. Hence, I did not think any input from the Authority or otherwise was needed. Although I do not remember specifically what I did with the fax, I believe I discarded it in the trash.

4. ProBall was given a suite of offices in the five-story Administrative Building of the Franklin City Sports Complex. Those offices are on the fifth floor. All the Authority's offices, including mine, are on the second floor, as is the fax machine which serves all of the Authority's departments. (The ground floor contains a museum and ticket offices; the third and fourth floors are occupied by the firms holding the parking and food concessions at our facilities.)

5. Other than occasional greetings while passing in the lobby of our building or sharing rides in the elevator, I have had no contact with anyone working for ForwardDesigns.

6. I and some of my staff meet occasionally with executives of ProBall Inc. to coordinate details concerning the construction and operation of the new football stadium. Other than that, no one from the Franklin Sports Authority has any dealings with representatives of ProBall Inc., the team owner.

Dated July 22, 2026

Daniel Luce

Daniel Luce

Signed before me on this 22nd day of July, 2026

Jane Mirren

Jane Mirren
Notary Public

AFFIDAVIT OF MONICA DEAN

STATE OF FRANKLIN)
COUNTY OF LINCOLN)

I, Monica Dean, being duly sworn, depose and say:

1. I am a commercial artist and designer for ForwardDesigns. Our firm was retained in August of 2025 by ProBall Inc. to design a logo and uniforms for the Franklin Aces pro football team. I was the sole designer working on the project. Our firm was paid $10,000 for its services.

2. To facilitate my work on the project, the team gave me an office located in their suite of offices on the fifth floor of the Administrative Building of the Franklin City Sports Complex. I have had no contact with employees of the Franklin Sports Authority, other than with Julie Covington, a personal friend who works in the Authority's transportation office and with whom I occasionally have lunch. I have never met Daniel Luce, the Authority's Chief Executive Officer.

3. As I thought about a logo for the team, one obvious choice was a hand holding the four aces from a deck of cards. I had seen many versions of that image, including many on clip art collections on the Internet, none of which were protected by copyright, and which I used for inspiration. About five months ago, I drew that design, along with about a dozen others, and submitted it to ProBall Inc., who chose it as the new team logo. I alternated the suits of the cards in the design so that they appeared as first a red suit, then a black suit, and I made the last and most visible card the ace of spades, as it is the most striking and familiar card.

4. I do not recall ever seeing any sketch of any idea for the logo created by anyone else prior to creating my design.

Dated July 22, 2026

Monica Dean
Monica Dean

Signed before me on this 22nd day of July, 2026

Jane Mirren
Jane Mirren
Notary Public

Savia v. Malcolm

United States District Court for the District of Franklin (2003)

In this action for copyright infringement, plaintiff Joseph Savia, the composer and copyright owner of the song "Perhaps," claims that defendant Lauren Malcolm copied the melody of his song and used it in her song "Love Tears" without authorization. After extensive discovery, the parties have filed cross-motions for summary judgment. We deny the plaintiff's motion and grant the defendant's motion.

Facts

In 1981, Savia wrote "Perhaps" and was successful in having it placed over the closing credits of the motion picture *The Duchess of Broken Hearts*. The motion picture had only a limited theatrical release, playing in a single "art house" movie theater in Franklin City for a three-week run. A dispute among the producers of the motion picture, for reasons not relevant here, has resulted in no further exploitation of the motion picture, either in theatrical release, in home video format, or on television, cable, the Internet, or otherwise. The motion picture was rated NC-17 by the Motion Picture Association of America because of its sexual content. That rating means that no one under the age of 17 will be admitted to a theater showing the motion picture. "Perhaps" was never commercially recorded, other than for the soundtrack of the motion picture, and no recording of it has ever been released. Savia registered the work with the United States Copyright Office, and there is no dispute about the validity of the copyright in "Perhaps" or that he is the copyright owner.

In 2002, Malcolm, a lifelong resident of Franklin City and a highly successful 25-year-old songwriter, wrote "Love Tears," which was commercially recorded and released by Remnants of Emily, a well-known rock band. The recording achieved great success, ultimately making number one on the *Billboard* "Hot 100" chart for four weeks. The recording has sold over two million copies, and the song has been widely performed and has been used in commercial advertisements. Malcolm, as songwriter, has, through the end of 2002, earned approximately $1.5 million in royalties attributable to the song from these various uses.

The parties each presented expert testimony from musicologists. These expert witnesses

agreed, and the court as finder of fact also finds, that the lyrics of the songs are entirely different, but that the melodies are, if not identical, virtually so.

The Standard for Infringement

It is rare that direct evidence of copyright infringement exists. Therefore, the courts have turned to circumstantial evidence in determining whether one work infringes another. In doing so, the courts in this Circuit have uniformly applied a two-prong test for infringement: 1) Are the works "substantially similar"? 2) Did the alleged infringer have access to the copyrighted work? The reasons for these two standards should be obvious: If the works are not, at the very least, substantially similar, there can be no infringement. And if the alleged infringer had no access to the allegedly infringed work, there could be no possibility of copying. Certainly, the more similar the works, the less evidence of access need be adduced. But plausible evidence of access must always be found.

Two cases are instructive. In *Fred Fisher, Inc. v. Dillingham*, 298 F. 145 (S.D.N.Y. 1924), the legendary songwriter Jerome Kern was accused of plagiarizing the bass line from a wildly popular earlier work. Although Kern testified that he did not consciously use the earlier work, the court concluded that Kern, a working songwriter who kept up with current popular music, must have heard it and so had access to it. Kern also argued that the bass line could be found in earlier works which were not protected by copyright; if he had copied from those works, he would not be infringing. But, as Kern could not prove that he was even aware of those works before the lawsuit, his argument failed, and he was found liable for infringement.

In *Bright Tunes Music Corp. v. Harrisongs Music, Ltd.*, 420 F. Supp. 177 (S.D.N.Y. 1976), *aff'd sub nom ABKCO Music Inc. v. Harrisongs Music, Ltd.*, 722 F.2d 988 (2d Cir. 1983), George Harrison (of the Beatles) was accused of plagiarizing the melody of an earlier popular rock and roll song. He testified that he did not consciously copy the earlier song, and the court believed him. Nevertheless, the court concluded that he had access to the earlier song and so had "unconsciously" copied it; he was found liable for infringement.

Analysis

Here, there is no question that the works are virtually identical. Substantial similarity—

indeed, striking similarity—of the melodies is proven. The question is whether Malcolm had access to Savia's song. Can access be plausibly inferred from the evidence? We conclude that it cannot.

As noted, Savia's song was released to the public only in the form of the closing credits of a motion picture, one that had only a limited run in Franklin City. Further, the motion picture had been rated NC-17, meaning that no one under the age of 17 would be admitted to the theater. At the time the motion picture was released, Malcolm was four years old. While we can take judicial notice of the fact that the ratings code is sometimes more honored in the breach than in the observance, we think it implausible that a four-year-old child would be admitted to a theater showing an NC-17–rated movie.

Savia argues that, even so, Malcolm might have had access to "Perhaps" by hearing someone who had seen the motion picture play or sing the song. Without a scintilla of evidence to justify that conclusion, we cannot credit such mere speculation.

Conclusion

We conclude that there is no plausible evidence that Malcolm had access to Savia's work. For that reason, notwithstanding the virtual identity of the melodies of the two songs, we conclude that Malcolm's song was original with her and was not copied from Savia's. We deny Savia's motion for summary judgment and grant Malcolm's motion for summary judgment.